

7	Li – Trust; 30-2025-01527278	Motion to Compel Petitioner Conan Li’s Motion to Compel Production of Records Pursuant to Subpoena Issued to Ascendant LLP (ROA 16) is GRANTED in part and DENIED in part as set forth below. This matter arises out of the James Chen-Min Li Irrevocable Trust dated September 8, 2022 (Trust). Petitioner Conan Li (Petitioner) asserts the trustor, James Chen-Min Li (Decedent), lacked testamentary capacity when he executed the Trust and/or the Trust was the result of undue influence and/or duress. Petitioner also asserts a claim of financial elder abuse and a Probate Code section 850 claim relating to unspecified assets. Decedent was represented by Ascendant, LLP in connection with creation of the Trust. Petitioner issued a subpoena to Ascendant, seeking records relating to creation of the trust. Ascendant responded with objections only. This motion followed. The subpoena included 12 categories of documents, some of which are somewhat redundant. Generally speaking, the subpoena seeks all documents and communications relating to Ascendant’s representation of Decedent in connection with the trust and amendments thereto. Three of the requests, Nos. 7, 11, 12 also seek documents and/or communications with persons other than Decedent. Ascendant’s written response included the following objections: vague and ambiguous, a response to the request would require preparation of compilation, premature, and burdensome. These objections are without merit. Ascendant also asserted the attorney-client privilege and attorney work product doctrines. The privilege objection is without merit as it relates to Ascendant’s representation of Decedent. “There is no privilege under this article as to a communication relevant to an issue between parties all of whom claim through a deceased client, regardless of whether the claims are by testate or intestate succession, nonprobate transfer, or inter vivos transaction.” (Evid. Code, § 957.) Further, there is no privilege for communications relevant to the intention of a deceased client with respect to conveyance of property interest or the intention of a deceased client executing a document which the lawyer is an attesting witness. (Evid. Code, §§ 959, 960.) Although the duty of confidentiality imposed by Rules of Professional Conduct, Rule 1.6 might be “broader” than the attorney-client privilege (<i>Dietz v. Meisenheimer & Herron</i> (2009) 177 Cal.App.4th 771, 7786), it does not prohibit
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		production of the requested documents in the context of this probate proceeding, particularly where there are statutory provisions specifically designed to allow the introduction of exactly the sorts of documents sought by the subpoena. The cases cited by Ascendant do not dictate otherwise. The work product objection, however, has merit. "The attorney, not the client is the exclusive holder of the work product privilege." (<i>Melendrez v. Superior Court</i> (2013) 215 Cal.App.4th 1343, 1353.) Accordingly, the motion to compel production is GRANTED as to Requests Nos. 1, 2, 3, 4, 5, 6, 8, 9, & 10. The motion to compel production is GRANTED in part and DENIED in part as to Requests Nos. 7, 11, & 12 as follows. Request No. 7 seeks all communications with anyone related to the Trust. The motion to compel production to Request No. 7 is GRANTED as it relates to communications with Decedent. To the extent there are any communications with individuals other than Decedent which may be protected by the attorney-client privilege, those documents need not be produced. Request No. 11 seeks documents related to services provided by Ascendant to Decedent or Respondent Edward Kong-Hwa Li (Respondent). The motion to compel production to Request No. 11 is GRANTED with regard to documents relating to the legal services provided to or on behalf of Decedent. To the extent there are documents relating to legal services provided to Respondent as an independent client, those documents need not be produced. Request No. 12 seeks documents related to services provided by Ascendant to Decedent, Respondent, the Trust, and the Estate. The motion to compel production to Request No. 12 is GRANTED with regard to documents relating to the legal services provided to or on behalf of Decedent. To the extent there are documents relating to legal services provided to Respondent, the Trust, or the Estate as independent clients, those documents need not be produced. If any document is withheld on the ground of attorney-client privilege with a client other than Decedent (in response to Requests Nos. 7, 11, and/or 12) or attorney work product doctrine, Ascendant must identify such document(s) on a privilege log. The privilege log must provide sufficient information for Petitioner to evaluate the merits of the claim of privilege. (CCP § 2031.240.) That information should, at a minimum, include the author, recipient(s), date, heading or re: line and other pertinent information.
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